

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1257 of 2002 with
C.Rule 317 (R) of 2006

Bimal Krishna Pal

..... Petitioner

-Versus-

Government of Bangladesh, represented by
Deputy Commissioner, Jhalkati and others

..... Opposite parties

Mr. Muzahar Hossain with

Mr. Md. Shahidul Islam, Advocates

..... For the Petitioner

Heard on 15.02.2016 and

Judgment on 16.02.2016

At the instance of the petitioner, Bimal Krishna Pal, this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 01.01.2002 passed by the Joint District Judge, second Court, Jhalakati in Title Appeal No. 104 of 2000 in affirming the judgment and decree dated 28.05.2000 passed by the Senior Assistant Judge, Jhalakati in Title Suit No. 8 of 1998 dismissing the suit should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioner as plaintiff filed Title Suit No. 8 of 1998 in the Court for declaration of title in respect of 'ka' scheduled property of the plaintiff.

The case of the plaintiff in short is that under Police Station Jhalakoti Mouza Roymongol (Now Jhalakati) in the southern side of C.S. Plot No.

374, 375 and 376 there is a C.S. Plot situated being C.S. Plot No. 351 measuring 8 cubit x .8 cubit length and breath comprising an area .09 sahaarangso of suit land which was originally belonged to Sree Sree Rakto Kamleswar Sil Thakur and other deity corresponding R.S. Plot No. 1635. Above noted C.S. Plot No. 374, 375 measuring an area. 051 sahasrangso and its structure belonged to Aswini Kumar who sold it to A. Hakim Mia by a kabala deed executed on 28.03.55 and registered on 29.03.55. Leter on A. Hakim Mia made Ewaj .009 shhasransgo of land in favour of plaintiff's father Ramchandro Pal and the plaintiffs uncle Ananto Kumar Pal by registered Ewaj deed dated 08.10.55 vide deed No. 1773 from C.S. Plot No. 351 measuring an area of 0.40, 121 decimals of land.

The suit property of C.S. Plot No. 351 corresponding R.S. Plot No. 1635 belonged to Sree Sree Rakto Kamoleswar Sil Thakur and other deity represented by sebait Receiver Babu Sachindronath Mukhapadhyua and he leased out the suit land measuring an area of 0.009 sahasrangso of land in favour of Ranchandro Pal orally in the year 1342 B.S. subsequently alleged landlord and Ram Chandrao Pal jointly executed (unregistered) kabaliat in respect of the suit land on 18th Falgoon 1357 B.S. for 3 years and since then Ramchandra Pal constructed shop house and running clay made cooking pots business.

After the expiry of term of the kabuliat Ram Chandra Pal Possessing the suit land by holding over. Thereafter Ram Chandro Pal died leaving only one son plaintiff as the sole heir and plaintiff possessing the suit land and running the said business.

The said suit was contested by the defendant Nos. 1 and 2 by filing written statement contending, inter alia, that the suit property mentioned in the scheduled of the plaint was not a debattor estate, as such, no question arose for releasing the suit land in favour of the predecessor of the plaintiff. Some forged and fraudulent documents were created for filing a title suit with a false claim. The suit land/ property was recorded in the S.A. Khatian No. 1 as the khas land under the government. The present plaintiff-petitioner was only given a একশনা ejahara (yearly lease) vide Settlement Case No. 38JK/ 84-85 for the year of 1395 B.S. The Opposite Parties as Defendant Nos. 1 and 2 further stated that present petitioner as plaintiff claimed that he was a lessee under the Sabayet of the Debattor Property which was subsequently exchanged with another person but the petitioner failed to prove as these are forged and fraudulent documents in order to mislead the court. The present respondent Nos. 4 and 5 filed a permission application supporting the case of the plaintiff. In the trial court the plaintiff adduced 1 witness and the defendants produced 1 witness and after conclusion of the trial the learned senior Assistant Judge, Jhalakati dismissed the suit. Being aggrieved the present petitioner as the appellant filed the Title Appeal Nos. 104 of 2000 in the court of learned District Judge, Jalakatgi which was heard by the learned Joint District Judge, 2nd court, Jalakati dismissing the appeal and thereby affirming the judgment and decree of the learned trial court. This revisional application has been filed challenging the said impugned judgment passed by the appellate court below and obtained the present Rule.

Mr. Shahidul Islam, the learned Advocate appearing for the plaintiff-petitioner submits that that the impugned judgment and decree is based on mere surmise and conjecture and non-consideration of evidence on record both oral and documentary. The learned courts below ought to have decided that the suit land wrongly recorded in S.A. Khatian No. 1 and the said S.A. Khatian has got no basis or foundation and the government has no right, title and possession in the suit land. The learned appellate court ought to have decided that record of right is not a document of title and S.A. Khatian raises no presumption of title unless the record of right is supported by any valid and legal document and thus the learned appellate court committed an error in the decision occasioning failure of justice.

The learned Advocate further submits that the learned court below ought to have decided that the suit is not barred by limitation. The defendants denied the plaintiffs' title in the year 1404 B.S. 14th Agrahan corresponding to 1998 and plaintiff instituted Title Suit No. 8 of 1998 on 13.01.1998 i.e. within 6 years from the denial of title. So the suit is not barred by limitation according to Article 120 of the Limitation Act.

The learned Advocate also submits that the learned court below ought to have decided that the plaintiff was threatened with dispossession in a summary way by the defendants and it was under the instant threats of forcible dispossession. The Plaintiff had to pray for yearly (Eksons) lease of the suit from the government vide Settlement Case No. 38JK/ 84-85 for saving his possession.

The Rule has been opposed by the opposite party Nos. 1, 2 and 3 contending, inter alia, that after hearing the parties in detailed the learned trial court dismissed the suit filed by the present petitioner on the ground that the petitioner as the plaintiff failed to prove its case by adducing and producing sufficient documents in the court, in particular, claim pursuant to the settlement of the land for 3 years lease in favour of the plaintiff petitioner by the Sabayet of the debattor property where the petitioner stated conflicting statement as to not availability of the original documents for purchasing in the court. It is further contended that the purported exchange deed produced by the plaintiff in the trial court could not be supported by the witness, rather, the petitioner as the plaintiff accepted a yearly lease under the present opposite party No. 1 for the period of 1984-85 and the suit was filed in the year of 2002 without any cause of action thus, the suit was dismissed and the appeal was also dismissed by the courts below.

Mr. Goutam Kumar Roy, the learned Deputy Attorney General appearing along with the learned Assistant Attorney General Mr. Yousuf Mahmud Morshed submits that by accepting the lease under the opposite party No. 1 the petitioner has accepted the ownership of the government-opposite party and the petitioner has utterly failed to prove any kind of ownership claiming through filing the suit. Upon hearing both the parties the learned trial court dismissed the suit and on appeal preferred by the present petitioner as appellant was also dismissed by affirming the judgment and decree, therefore, the Rule is liable to be discharged.

The learned Deputy Attorney General also submits that the suit filed by the petitioner was found barred by the period of limitation by the courts below as the petitioner filed this title suit for a decree claiming title upon the suit land whereas the petitioner admitted the lease in the year of 1984-85 claiming that the lease was issued in an adverse situation by the opposite parties in the year of 1984-85 and the suit was filed after 13 years from the date of that purported claim, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with its Annexures therein, in particular, the impugned judgment and decree passed by the learned appellate court below and also considering the L.C. Records, it appears to me that the petitioner filed Title Suit No. 8 of 1998 in the court of learned Senior Assistant Judge, Jhalakati claiming title of the suit land situated in the P.S. Jhalakati, Upazilla- Rajmongal (now Jhalakati) in the southern side of the C.S. Plot Nos. 374, 375 and 376. There is a C.S. Plot being C.S. Plot No. 351 measuring 8 cubit x 8 cubit length and breath comprising an area of 0.09 sahasrang so which is know as the suit land.

In the trial the present petitioner as plaintiff case was that one Ashani Kumar Pal executed a Chandina Kusha on 28.03.1955 in favour of one Abdul Hakim Mia. On 08.10.1955 exchange the suit land with the said Abdul Hakim Mia. The present opposite party on the other hand as the defendants claimed that the suit land was recorded in the name of

government in S.A. Khatian and the land is a khas land and the present petitioner is a yearly lessee of the suit land for the period of 1984-85. It further appears from the records that the petitioner as the plaintiff could not produced the original documents of the above mentioned Chandina Kusha or exchange deed, therefore, the claim of the petitioner could not be established, rather, by accepting the lease the present petitioner has admitted ownership of the government-opposite party. The learned court found that the petitioner as the plaintiff has utterly failed to prove its case by adducing and producing evidence in the court. On the top of in deciding suit filed by the petitioner was barred by limitation finding by the trial court by the judgment dated 25.05.2000 which reads as follows:-

“বাদীর দাখিলী কাগজ মূল বাদীর অনুকূল কোন স্বত্ব স্বার্থ উপজাত হয় নাই। বাদীর স্বীকৃত ম-ত ৩৮ থে-ক / ৮৪-৮৫ নং মিস মোকাদ্দমার ১৩৯৫ সন পর্যন্ত লীজ নেওয়ার কার-ন বাদীর বর্তমান মামলার দাবী ও-য়ভার, পেটা-পল এবং একুই-জশন দো-ষ বারিত। বাদীর নালিশী জমি-ত কোন স্বার্থ নাই। তৎপর বাদীর মোকদ্দমা বর্তমান ভা-ব আকা-র ও প্রকা-র চলি-ত পা-র না। এবং বাদী অত্র মামলা প্রাথীত ম-ত ডিক্রীও পাইতে পা-রন না। এ দি-ক বাদীপক্ষ আরজীর ৯ নং দফায় যে নালি-শর কারন উ-ল্লখ করিয়া-ছ উহা বা-নায়াট এবং মোকাদ্দমা সাজ বিদায় বাহানা মাত্র। বাদীপক্ষ পূর্বাকার এস, এ রেকর্ড অবগত আ-ছ। তৎ-হতু এস, এ জরী-পর দীর্ঘবৎসর প-র বাদীর দাখিলী অত্র মোকাদ্দমা তামাদি বারিত। সুতারাং উপরোক্ত আলোচন া ম-ত এবং সার্বিক পর্যা-লাচনায় ১/ ৩/ ৪/ ৫/ ৬ নং বিচার্য বিষয় সমূহ বাদীর প্রতিকূ-ল নিষ্পতি করা হইল এবং উপরোক্ত কারনাধী-ন বাদীর মোকদ্দমাটি খারিজ-যাগ্য।”

Being aggrieved the petitioner as the appellant filed Title Appeal No. 104 of 2000 wherein the appellate court below has considered all the relevant documents adduced and produced by the petitioner and after considering the exhibits, in particular, the exhibit Nos. 1, 2 and 3 which are the documents filed by the petitioner in support of his ownership but the appellate court displeased the documents as the plaintiff could not filed some of the original vital part of the plaintiff's case. The learned Joint

District Judge, 2nd court, Jhalakati it its judgment and decree dated 01.12.

2001 dismissed the appeal on the following findings:-

“বাদীর আর্জির ৭ দফায় তাৎক্ষনিক ভা-ব নালিশী ভূমি-ত তাহার দাবীকৃত দখল অক্ষুন্ন রাখার জন্য বিবাদী প-ক্ষর কথিত ম-ত নালিশী ভূমি ব-ন্দাবস্থ পাওয়ার দরখাস্ত দাখিল ক-রন ম-র্ম দাবী করি-লও, তদরূপ দাবীর সমর্থ-ন কোন প্রকার প্রাসংগিক কাগজপত্র আদাল-ত দাখিল ক-রন নাই। দখল রক্ষা-র্থ কাগজ প-ত্রর সাময়িক অভা-ব, বেদখলকারীর হুমকির মু-খ -বদখলকারীর নি-র্দশ মত ব্যবস্থা গ্রহন, মহামান্য উচ্চ আদাল-তর সিদ্ধান্ত ম-ত আইন মানিয়া। কিন্তু বর্তমান মোকদ্দমায় বাদীপক্ষ বিবাদী পক্ষ কর্তৃক বেদখ-লর হুমকির মু-খ ৩৮ থে-ক / ৮৪-৮৫ নং মিস কেই-স পত্তন বা ব-ন্দাবস্থ গ্রহনে বাধ্য হওয়ার আর্জি বর্ণিত দাবী প্রমা-ন ব্যর্থ হওয়ায় এবং ৩৮ থে-ক / ৮৪-৮৫ নং মিস কেই-স পত্তন গ্রহ-নর দীর্ঘ প্রায় ১৩ (তের) বৎস-রর উধ্বকাল পর বর্তমান মোকাদমা দা-য়র করায় ইহা সহ-জ ই প্রমানিত হয় যে, বাদী কর্তৃক ৩৮ থে-ক / ৮৪-৮৫ নং মিস কেই-স নালিশী ভূমি পত্তন বা ব-ন্দাবস্থ গ্রহন সম্পূর্ণ ভয়ভীতিহীন ও স্বেচ্ছা প্র-নাদিত ছিল। বাদী সম্পূর্ণ স্বেচ্ছা প্র-নাদিত ভা-ব অন্যান্য ব্যক্তির ন্যায় নালিশী ১৬৩৫ নং দা-গর নালিশী ভূমি খন্ডটি ৩৮ থে-ক / ৮৪-৮৫ নং মিস কেই-স ব-ন্দাবস্থ বা পত্তন গ্রহন করতঃ একই সনপত্তি বাবদ বর্তমান স্বত্ব ঘোষনার দাবীতে অত্র মোকদ্দমা দা-য়র বাদীর বর্তমান মোকদ্দমা আই-নর এ-স্টা-পল ও-য়ভার ও একুই-সন্স নীতি-ত বারিত হইতেছে।এ সংক্রান্তে বিজ্ঞ নিম্ন আদাল-তর আ-লাচনা ও সিদ্ধান্ত সঠিক ও যথাযথ বলিয়া আমি ম-ন করি।”

From the above concurrent finding by the trial court and the appellate court below I am satisfied that the learned courts have considered the case and the facts of the case and the evidence in this matter and come to a concurrent findings by the impugned judgment and decree affirming the judgment of the trial court. I also consider that there is no misreading and misconstrued evidence or not considerable by the trial court and the appellate court below upon all given documents submitted by the parties.

Regarding the limitation period for filing the instant suit I also consider that the petitioner as the plaintiff had remedy available under the provision of Specific Relief Act because the plaintiff claimed the suit land does not belong to the opposite party, therefore, the petitioner cannot consider himself as a lessee. However in the revisional application the petitioner admits that he obtained a yearly lease from the government vide Settlement Case No. 38jk/ 84-85 for the year of 1395 B.S. The settle

principle is a lessee in any manner of a suit is barred from claiming entitlement of ownership on the same land in the same period. Moreover petitioner admitted the lease in the year of 1995 claiming that he was forced or compelled to take in order to continue his possession upon the land. Here again, the petitioner instead of taking appropriate measure cannot make such claim because he delayed for 13 years for filing a title suit in the year of 2002. I, therefore, consider that the learned appellate court below had not committed error of law by dismissing the suit on the ground of limitation period and I am, therefore, not inclined to interfere into the impugned judgment and decree.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of statusquo granted at the time of issuance of the Rule upon the parties for maintaining statusquo in support of the possession of the suit land is hereby recalled and vacated.

At the instance of the petitioner-applicant, Bimal Krishna Pal in the Civil Rule No. 317 (R) of 2006, this Rule has been issued calling upon the opposite parties to show cause as to why they should not be punished for violating and disrespecting this court's order dated 23.03. 2002 passed in Civil Revision No. 1257 of 2002 directing the parties to maintain status quo in respect of their possession in the suit land in accordance with law.

The petitioner filed this contempt petition under order 39 Rule 2(3) of the Code of Civil Procedure for drawing a proceeding for violation of court's order passed in the Civil Revision No. 1257 of 2003.

The petitioner claimed that during the continuation of the interim order of status quo the contemptner i.e. opposite party No. 1, Md. Shawkat Nabi, Deputy Commissioner, Jhalakati (2) Md. Nurul Amin, Additional Deputy Commissioner (Rev) Jhalakati, (3) Numeri Jaman, Assistant Commissioner (Land) Jhalakati and (4) Abul Basher, Tashilder, Jhalakati have violated and disregarded the order of this court. He further claim that the contemptner opposite party No. 2, Md. Nurul Amin issued a notice upon the present petitioner on 23.12.2002 vide Memo No. -জ প্র/ ঝাল/ এল, এ/ উ-ছদ/ ২০০২ / ৩০৬ to dispossess and evict the applicant from the suit land. It is also claimed that on 25.06.2005 the contemptner-opposite parties trying to evict and threatening him for filing the revisional application or any other legal activities they have forcefully broken the house of the petitioner.

Mr. Md. Shahidul Islam, the learned Advocate appearing for the petitioner-applicant submits that the contemptner have violated and disregeted the order of this court, therefore, they should be punished.

Mr. Yousuf Mahmud Morshed, the learned Assistant Attorney General appearing for the opposite party No. 1 Md. Shawkat Nabi submits that the contemptner opposite party No. 2 Md. Nurul Amin, the Additional Deputy Commissioner.

Mr. Nurul Huda, the learned Advocate appearing for the opposite party No. 3, Numeri Jaman, Assistant Commissioner (Land) Jhalakati Upazila submits that the opposite party No. 3 was unaware of the order passed by this court and whatever action taken by him was not intentional,

rather it was not to harmony the dignity and respect of this court, therefore, the opposite party No. 3 prays for un-conditional apology in this regard.

Considering the Rule itself issued by this court and the submission made by the learned Advocates appearing for the contemptners-opposite parties it appears that the contemptners-opposite parties were not aware on the date of action taken by this court in the year of 2002 and 2005 as the Rule was issued on 30.03.2006. However, the contemptner-opposite parties have sought unconditional apology for any action taken by them during the period of the order passed by this court, therefore, they should be released from their liabilities and no proceeding should be drawing against them.

In my view the petitioner of this contempt could not produce any substantial evidence except Annexure-B series of the contempt petition which is not clear as to the violation of the order of this court, rather, it was a routine letter issued by the contemptner opposite party No. 2. Moreover the documents produced in the court is simply a photocopy whereas the petitioner should have produced original copy of the said letter if it was to send to him behind all the factual aspects the contemptners opposite parties prayed for excusing them from any contempt proceeding against them as they have expressed their un-conditional and unqualified apology for their act, as such, I am inclined to withdraw any proceeding against them.

Accordingly, the Rule is discharged.

The contemptners opposite party Nos. (1) Md. Shawkat Nabi, Deputy Commissioner, Jhalakati (2) Md. Nurul Amin, Additinal Deputy Commissioner (Rev) Jhalakati (3) Numeri Jaman, Assistant Commissioner

(Land), Jhalakati Upazilla and (4) Abul Basar, Tashilder, Jhalakati are hereby released from the contempt proceeding and from all liabilities under this Rule.

The office is directed to communicate the judgment order to the concerned persons immediately.